

Ikbal Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 December 2020 · Writ-C No. 20338 of 2020 · **Writ dismissed; petitioner relegated to Clause 8.1 theft proceedings.**

HEADNOTE

A writ seeking discharge from an electricity-theft accusation was dismissed. Cognizance proceedings in theft matters are undertaken under Clause 8.1 of the Electricity Supply Code, 2005. The consumer may participate before the competent authority, who is to decide in accordance with law. The petition failed for that alternative statutory remedy.

FACTUAL SUMMARY

Ikbal Ahmad filed a writ petition in the Allahabad High Court seeking a direction to respondent No. 2 to discharge him from an accusation of electricity theft, relying on a request he had made on 8 September 2020. Learned counsel for the petitioner was heard, and Sri N.K. Tiwari received notices on behalf of respondent No. 2. The petition did not impugn any completed assessment, bill, or disconnection order; the sole prayer was discharge from the theft accusation in light of that request.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

theft-cognizance-alternative-remedy

HOLDING

Proceedings for taking cognizance of an electricity-theft offence are undertaken under Clause 8.1 of the Electricity Supply Code, 2005. A writ seeking discharge from a theft accusation is not maintainable where that alternative statutory remedy is available; the consumer may approach the competent authority, participate in the Clause 8.1 proceeding, and obtain a decision in accordance with law. ¶ 1

PRINCIPLE TAGS

theft-recovery-writ-not-entertainable-s126-clause-8.1 The Court refused to entertain a writ seeking discharge from a theft accusation and relegated the petitioner to participate in Clause 8.1 Supply Code proceedings before the competent authority. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO BE DISCHARGED FROM THE ELECTRICITY-THEFT ACCUSATION ON HIS REQUEST DATED 8.9.2020

Left to the competent authority in the Clause 8.1 proceeding. ¶ 1